

thing, without which he cannot live ; yet hath that man the Liberty to disobey.

If a man be interrogated by the Sovereign, or his Authority, concerning a crime done by himselfe, he is not bound (without assurance of Pardon) to confesse it ; because no man (as I have shewn in the same Chapter) can be obliged by Covenant to accuse himselfe.

Again, the Consent of a Subject to Sovereign Power, is contained in these words, *I Authorise, or take upon me, all his actions* ; in which there is no restriction at all, of his own former naturall Liberty : For by allowing him to *kill me*, I am not bound to kill my selfe when he commands me. 'Tis one thing to say, *Kill me, or my fellow, if you please* ; another thing to say, *I will kill my selfe, or my fellow*. It followeth therefore, that

No man is bound by the words themselves, either to kill himselfe, or any other man ; And consequently, that the Obligation a man may sometimes have, upon the Command of the Sovereign to execute any dangerous, or dishonourable Office, dependeth not on the Words of our Submission ; but on the Intention ; which is to be understood by the End thereof. When therefore our refusall to obey, frustrates the End for which the Sovereignty was ordained ; then there is no Liberty to refuse : otherwise there is.

Nor to warfare, unless they voluntarily undertake it.

Upon this ground, a man that is commanded as a Souldier to fight against the enemy, though his Sovereign have Right enough to punish his refusall with death, may neverthelesse in many cases refuse, without Injustice ; as when he substituteth a sufficient Souldier in his place : for in this case he deserteth not the service of the Commonwealth. And there is allowance to be made for naturall timorousnesse, not onely to women, (of whom no such dangerous duty is expected,) but also to men of feminine courage. When Armies fight, there is on one side, or both, a running away ; yet when they do it not out of trechery, but fear, they are not esteemed to do it unjustly, but dishonourably. For the same reason, to avoyd battell, is not Injustice, but Cowardise. But he that inrowleth himselfe a Souldier, or taketh imprest mony, taketh away the excuse of a timorous nature ; and is obliged, not onely to go to the battell, but also not to run from it, without his Captaines leave. And when the Defence of the Commonwealth, requireth at once the help of all that are able to bear Arms, every one is obliged ; because otherwise the Institution of the Commonwealth, which they have not the purpose, or courage to preserve, was in vain.

To resist the Sword of the Commonwealth, in defence of another man, guilty, or innocent, no man hath Liberty ; because such Liberty, takes away from the Sovereign, the means of Protecting us ; and is therefore destructive of the very essence of Government. But in case a great many men together, have already resisted the Sovereign Power unjustly, or committed some Capitall crime, for which every one of them expecteth death, whether have they not the Liberty then to joyn together, and assist, and defend one another ? Certainly they have : For they but defend their lives, which the Guilty

ty man may as well do, as the Innocent. There was indeed injustice in the first breach of their duty ; Their bearing of Arms subsequent to it, though it be to maintain what they have done, is no new unjust act. And if it be onely to defend their persons, it is not unjust at all. But the offer of pardon taketh from them, to whom it is offered, the plea of self-defence, and maketh their perseverance in assisting, or defending the rest, unlawfull.

As for other Lyberties, they depend on the Silence of the Law. In cases where the Sovereign has prescribed no rule, there the Subject hath the Liberty to do, or forbear, according to his own discretion. And therefore such Liberty is in some places more, and in some lesse; and in some times more, in other times lesse, according as they that have the Sovereignty shall think most convenient. As for Example, there was a time, when in *England* a man might enter in to his own Land, (and dispossesse such as wrongfully possessed it,) by force. But in after-times, that Liberty of Forcible Entry, was taken away by a Statute made (by the King) in Parliament. And in some places of the world, men have the Liberty of many wives : in other places, such Liberty is not allowed.

The Greatest Liberty of Subjects, dependeth on the Silence of the Law.

If a Subject have a controversie with his Sovereigne, of debt, or of right of possession of lands or goods, or concerning any service required at his hands, or concerning any penalty, corporall, or pecuniary, grounded on a precedent Law ; he hath the same Liberty to sue for his right, as if it were against a Subject, and before such Judges, as are appointed by the Sovereign. For seeing the Sovereign demandeth by force of a former Law, and not by vertue of his Power ; he declareth thereby, that he requireth no more, than shall appear to be due by that Law. The sute therefore is not contrary to the will of the Sovereign ; and consequently the Subject hath the Liberty to demand the hearing of his Cause ; and sentence, according to that Law. But if he demand, or take any thing by pretence of his Power ; there lyeth, in that case, no action of Law : for all that is done by him in Vertue of his Power, is done by the Authority of every Subject, and consequently, he that brings an action against the Sovereign, brings it against himselfe.

If a Monarch, or Sovereign Assembly, grant a Liberty to all, or any of his Subjects, which Grant standing, he is disabled to provide for their safety, the Grant is voyd ; unlesse he directly renounce, or transferre the Sovereignty to another. For in that he might openly, (if it had been his will,) and in plain termes, have renounced, or transferred it, and did not ; it is to be understood it was not his will ; but that the Grant proceeded from ignorance of the repugnancy between such a Liberty and the Sovereign Power : and therefore the Sovereignty is still retayned ; and consequently all those Powers, which are necessary to the exercising thereof ; such as are the Power of Warre, and Peace, of Judicature, of appointing Officers, and Councillours, of levying Mony, and the rest named in the 18th Chapter.

In what Cases Subjects are absolved of their obedience to their Sovereign.

The Obligation of Subjects to the Sovereign, is understood to last as long, and no longer, than the power lasteth, by which he is able to protect them. For the right men have by Nature to protect themselves, when none else can protect them, can by no Covenant be relinquished. The Sovereignty is the Soule of the Common-wealth; which once departed from the Body, the members doe no more receive their motion from it. The end of Obedience is Protection; which, wheresoever a man seeth it, either in his own, or in anothers sword, Nature applyeth his obedience to it; and his endeavour to maintaine it. And though Sovereignty, in the intention of them that make it, be immortall; yet is it in its own nature, not only subject to violent death, by forreign war; but also through the ignorance, and passions of men, it hath in it, from the very institution, many seeds of a naturall mortality, by Intestine Discord.

In case of Captivity.

If a Subject be taken prisoner in war; or his person, or his means of life be within the Guards of the enemy, and hath his life and corporall Libertie given him, on condition to be Subject to the Victor, he hath Libertie to accept the condition; and having accepted it, is the subject of him that took him; because he had no other way to preserve himself. The case is the same, if he be detained on the same termes, in a forreign country. But if a man be held in prison, or bonds, or is not trusted with the libertie of his bodie; he cannot be understood to be bound by Covenant to subjection; and therefore may, if he can, make his escape by any means whatsoever.

In case the Sovereign cast off the government from himself and his Heyrs.

If a Monarch shall relinquish the Sovereignty, both for himself, and his heires; His Subjects returne to the absolute Libertie of Nature; because, though Nature may declare who are his Sons, and who are the next of his Kin; yet it dependeth on his own will, (as hath been said in the precedent chapter,) who shall be his Heyr. If therefore he will have no Heyre, there is no Sovereignty, nor Subjection. The case is the same, if he dye without known Kindred, and without declaration of his Heyre. For then there can no Heire be known, and consequently no Subjection be due.

In case of Banishment.

If the Sovereign Banish his Subject; during the Banishment, he is not Subject. But he that is sent on a message, or hath leave to travel, is still Subject; but it is, by Contract between Sovereigns, not by vertue of the covenant of Subjection. For whosoever entrencheth into anothers dominion, is Subject to all the Laws thereof; unlesse he have a privilege by the amity of the Sovereigns, or by speciall licence.

In case the Sovereign render himself Subject to another.

If a Monarch subdued by war, render himself Subject to the Victor; his Subjects are delivered from their former obligation, and become obliged to the Victor. But if he be held prisoner, or have not the liberty of his own Body; he is not understood to have given away the Right of Sovereignty; and therefore his Subjects are obliged to yield obedience to the Magistrates formerly placed, governing not in their own name, but in his. For, his Right remaining, the question is only of the Administration; that is to say, of the Magistrates